

26VECV01439 26VECV01439

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-11

Motion: DEFENDANTS' DEMURRER TO PLAINTFF KAMAL BAZZI'S FIRST AMENDED COMPLAINT

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Case Number: 26VECV01439 Hearing Date: August 11, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

KAMAL FAWZI

BAZZI,

Plaintiff,

vs.

ASC PROTECTION, INC., ADVANCED, SECURITY

CONCEPTS CORPORATION, ODED KRASHINSKY, and CHARLOTTE KRASHINSKY, and DOES 1
through 20, Inclusive,

Defendants.

CASE NO: 26VECV01439

[TENTATIVE]

ORDER RE:

DEFENDANTS'

DEMURRER TO PLAINTFF KAMAL BAZZI'S FIRST AMENDED COMPLAINT

Dept. W

8:30 a.m.

August 11, 2026

ORDER: The Court OVERRULES

Defendants' demurrer as to the fourth, fifth, sixth, seventh, eighth, ninth, tenth, and eleventh causes of action.

Background

This is an employment discrimination case. Plaintiff Kamal Bazzi, a practicing Muslim, was briefly hired as a security guard for Defendants ASC Protection Inc., and Advanced Security Concepts Corporation – two corporate entities operating as a single private security firm. These corporate entities are owned by Defendants Oded and Charlotte Krashinsky.

Plaintiff alleges that

he was fired after a single day on the job. According to Plaintiff, after he finished his initial trainings, he requested a religious accommodation from Defendants, via his supervisors. Specifically, Plaintiff requested an accommodation so that he could pray five times a day, as required by his faith. Plaintiff alleges that this accommodation was denied, and that Defendants were not amenable to any reasonable accommodations, such as praying off-site during scheduled breaks. Plaintiff was fired the next day.

On March 11, 2026,

Plaintiff filed suit against Defendants. On April 8, 2026, Plaintiff filed a First Amended Complaint (FAC), alleging eleven causes of action: 1) failure to pay wages upon termination 2) failure to pay all wages earned; 3) failure to reimburse employee; 4) retaliation under LAB § 98.6; 5) retaliation under LAB § 1102.5; 6) religious discrimination (failure to accommodate; 7) religious discrimination (general discrimination); 8) religious discrimination (wrongful termination); 9) retaliation in violation of FEHA; 10) wrongful termination in violation of public policy; and 11) failure to prevent or remedy retaliation or discrimination.

Now, Defendants demur

to the fourth, fifth, sixth, seventh, eighth, ninth, tenth, and eleventh causes

of action, as to the individual Defendants Oded and Charlotte Krashinsky.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (CCP § 430.41(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3).)

Here, Defendants provided a detailed meet and confer declaration from their attorney Arthur Morrow. (See, Demurrer, Morrow Decl.) Mr. Morrow states that he spoke with Plaintiff's counsel multiple times over the phone to discuss the issues raised in this pleading. (Morrow Decl. ¶¶ 4, 8.) Unfortunately, the parties were unable to resolve these issues informally. Thus, the Court finds that Defendants have met their meet and confer obligations.

Discussion

Defendants demur to the FAC's fourth, fifth, sixth, seventh, eighth, ninth, tenth, and eleventh causes of action, as to the individual Defendants Oded and Charlotte Krashinsky. (Demurrer, pp. 1-3.)

A demurrer tests the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (CCP §§ 422.10, 589; see, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pled in the complaint are assumed to be true. (Id. at 994.) Here, Defendants raise only two arguments: 1) that these eight claims cannot be alleged against individual defendants, and 2) that many of the claims are unnecessarily duplicative.

i)

Fourth Cause of Action – Retaliation under LAB § 98.6

First, Defendants demur to the fourth cause of action for retaliation under Labor Code § 98.6, arguing that this statute only creates liability for employers, not individual owners of companies. (Demurrer, pp. 2:26-4:6.)

Defendants raise a multi-part argument in support of this assertion.

First, Defendants acknowledge that LAB § 98.6 specifically states, “[a] person shall not discharge an employee or in any manner discriminate,

retaliate, or take any adverse action against any employee or applicant for employment because the employee or applicant engaged in any conduct delineated in this chapter.” (LAB § 98.6(a) [emphasis added].) However, Defendants argue that this language does not create individual liability, as section § 98.6(b)(1) through (b)(3) only reference “employers” when discussing liability. (See, e.g., LAB § 98.6(b)(3) [“an employer who violates this section is liable for a civil penalty not exceeding ten thousand dollars (\$10,000) per employee for each violation of this section, to be awarded to the employee or employees who suffered the violation”].)

Next, Defendants analogize the language of this statute to the retaliation provision under GOV § 12940(h), aka FEHA, which states that, “[f]or any employer, labor organization, employment agency, or person to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part.” (GOV § 12940(h) [emphasis added].) In the case of *Jones v. Lodge at Torrey Pines Partnership*, the Supreme Court of California ruled that while “[an] employer is liable for retaliation under section 12940, subdivision (h) . . . nonemployer individuals are not personally liable for their role in that retaliation.” (*Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1173.) Defendants invite this Court to apply the logic of *Jones* to LAB § 98.6(a). (Demurrer, p. 3:18-20.) Additionally, Defendants assert that the case of *St. Myers v. Dignity Health* applies this same rule to LAB § 98.6. (Id. pp. 3:26-4:2.)

While Defendants have crafted an interesting argument, they fail to cite any directly on-point case law. First, *Jones* is a case about FEHA and interpretation of Gov. Code § 12940. (See generally, *Jones*, supra.) While that fact that *Jones* interpreted a statute that used the word “person” as not creating personal liability in the context of employment discrimination could be persuasive authority, it is not binding on this Court. Notably, the *Jones* ruling also relied on complicated legislative history that does not apply here. (*Jones*, supra, p. 1169-1171.) Thus, this Court is not inclined to extend the ruling of *Jones* to a completely different statute.

Second, Defendants’ characterization of *St. Myers* is dubious at best, and

misleading at worst. Defendants quote the following language from the case:

“[b]oth Labor Code sections 98.6 and 1102.5, subdivision (b) prohibit an employer from discriminating or retaliating against an employee for filing a complaint or disclosing information about a safety violation.” (Demurrer, p. 4:1-2 [quoting *St. Myers*, supra, p. 311].) As a threshold matter, this language comes from a portion of the case not certified for publication. (Ibid.) Second, this language is not a conclusion of law about the application of Labor Code § 98.6 to individual defendants. It is a general statement about the broad purpose of the law itself. (Ibid.) Nowhere in *St. Myers* does the court conclude anything about the personal liability of defendants, because the defendant in *St. Myers* was a single corporation. (Id. p. 305.) Thus, this case has no persuasive value in this context.

Given that Defendants provide no directly-on-point case law stating that a claim of retaliation under LAB § 98.6 cannot be brought against an individual defendant, the Court will defer to the plain language of the statute, which uses the term “a person”. For these reasons, the Court **OVERRULES** the demurrer as to the fourth cause of action.

ii)

Fifth Cause of Action – Retaliation under LAB § 1102.5

Next, Defendants demur to the fifth cause of action for retaliation under Labor Code § 1102.5, raising the same argument that this statute only creates liability for employers, not individual owners of companies. (Demurrer, pp. 4:10-21.)

LAB § 1102.5 states that, “[a]n employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency . . .” (LAB § 1102.5(b) [emphasis added].) Defendants assert that despite this language, this statute does not impose individual liability.

Defendants once again

fail to provide any directly on-point case law. First, Defendants cite to

Vierria v. Cal. Highway Patrol, a federal case that analyzed an earlier version of this

statute which did not have the “any person” language. (*Vierria v. Cal. Highway Patrol* (E.D. Cal. 2009) 644 F.Supp.2d 1219, 1244.) Thus, this case is both

outdated and a non-binding authority. Next, Defendants cite to *Lu v. Hawaiian Gardens Casino, Inc.*, a California Supreme Court case that analyzes LAB § 351, not LAB §

1102.5(b). (*Lu v.*

Hawaiian Gardens Casino, Inc. (2010) 50 Cal.4th 592,

596.) Given that this case analyzes a different statute, its analysis on the issue of private rights of action is not relevant to the present case or cause of action.

Next, Defendants cite

to *Lawson v. PPG Architectural Finishes, Inc.* for the proposition that LAB § 1102.5 arises out of LAB § 1105 and is exclusively limited to recovery from employers. (Demurrer, p. 5:4-12 [quoting *Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 709.]) However, the line quoted by Defendants

appears to be a background explanation of an employee's rights, not an analysis of the scope of the statute. (*Lawson v.*

PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703,

709.) The term "arises" does not even appear in this case. (See generally, *Lawson*, *supra*.)

Finally, the Court notes the actual language of LAB § 1105 states: "[n]othing in this chapter shall prevent the injured employee from recovering damages from his employer for injury suffered through a violation of this chapter." (LAB § 1105.) Nothing about this language suggests that LAB § 1105 limits a plaintiff's ability to recover from an individual defendant under LAB § 1102.5. Instead, this appears to be a catch-all clause designed to preserve a plaintiff's rights, notwithstanding any apparent contradictions in the chapter itself.

For these reasons, the Court finds that Defendants have failed to present any binding case law supporting their assertion that this claim is invalid against individual defendants. Thus, the Court **OVERRULES** the demurrer as to the fifth cause of action.

iii)

Sixth, Seventh, and Eighth Causes of Action – Religious Discrimination
(failure to accommodate/general discrimination/wrongful termination)

Next, Defendants demur to the sixth, seventh, and eighth causes of action, arguing that these claims fail as to the two individual defendants, and that they are duplicative.

a) Duplicative

Here, all three of these claims are brought under GOV § 12940. (FAC pp. 14:7-16:10.) However, the fact that a cause of action is duplicative does not constitute one of the recognized grounds for a demurrer under CCP § 430.10 (CCP § 430.10 (a-h).) Thus, the Court is not obligated to sustain this demurrer on these grounds.

b) Fails as to the
Individual Defendants

Second, Defendants argue that individual defendants Oded and Charlotte Krashinsky are improper for these claims because California law holds that supervisors cannot be sued in their individual capacity for discrimination under FEHA. In support of this argument, Defendants cite to Janken v. GM Hughes Electronics. In Janken, the court concluded that, “only employers--and not individual supervisory employees--are at risk of liability for discrimination.” (Janken v. GM Hughes Electronics (1996) 46 Cal. App. 4th 55, 80.) Thus, if Defendants Oded and Charlotte Krashinsky are alleged to be supervisors, these discrimination claims would fail as to them.

Notably,
Plaintiff has not alleged that Oded and Charlotte Krashinsky were supervisors. Instead, Plaintiff alleges that, “[a]t all times herein relevant, there was an employer/employee, agency, or other qualified relationship between Plaintiff and Defendants.” (FAC ¶ 119 [emphasis added].) Thus, Plaintiff does not allege that the individual defendants are his supervisors – he alleges they are his employers. This designation is further indicated by other allegations, such as, “Defendants, through their supervisors, denied Plaintiff’s request, specifically prohibiting him from praying on the premises and citing concerns that Plaintiff’s religious observances would be visible to others.” (FAC ¶ 32 [emphasis added].) This language shows that Plaintiff is alleging a distinction between Defendants and the supervisors who acted on Defendants’ behalf.

The importance of this distinction is made clear in a California Supreme Court case cited in Defendants’ own brief. In Reno v. Baird, the court held that, “individuals who do not themselves qualify as employers may not be sued under FEHA for alleged discriminatory acts.” (Reno v. Baird (1998) 18 Cal. 4th 640, 663 [emphasis added] [superseded by statute in 2001 only on the issue of individual liability for harassment – see, Martinez v. Michaels (2015) U.S. Dist. LEXIS 9218, pp. 25-26].) Thus, Defendants Oded and Charlotte are potentially liable for these discrimination claims, if they

qualify as employers.

In Reply, Defendants argue that allegations that Defendants Oded and Charlotte are employers are insufficient. Instead, they assert that Plaintiff needs to properly allege alter ego. (Demurrer, p. 4:12-22.) The most relevant case on this point is *Leek v.*

Cooper. The facts of *Leek* are similar to the case

at hand. There, employees of a corporate-owned car dealership sued both the dealership and its sole owner, Jay Cooper, for age discrimination under FEHA. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 405.) Plaintiffs alleged that Mr. Cooper

was their “employer”. (Id. p. 415.) Mr. Cooper moved for summary judgment, arguing that only the corporation could be held liable for discrimination. (Id.) Plaintiffs argued that Mr. Cooper was both “an employer” under the relevant statutes, and that he was liable for the acts of his corporation under a theory of alter ego. (Id. p. 406.) The trial court granted the Motion for Summary Judgment, ruling in favor of Mr. Cooper. (Id.) On appeal, the court took up the issue of Mr. Cooper’s liability as employer, as well as the issue of alter ego. The court of appeals discarded the plaintiffs’ arguments as to whether Mr. Cooper fell under various statutory definitions of “employer”, and instead focused on the question of alter ego, holding that, “[t]he various tests asserted by plaintiffs are useful for determining who may be considered an employer or employee in other contexts, but the test for determining whether Cooper may be held to answer for the wrongdoing of the corporation is the alter ego doctrine.” (Id. p. 411.) Ultimately, the *Leek* court upheld the trial court’s MSJ ruling, finding that because the plaintiffs had failed to establish sufficient evidence of alter ego, they could not hold Mr. Cooper personally liable for their FEHA claims. (Id. p. 418.) From this case, the Court concludes that, in order to properly bring these claims against individual defendants Oded and Charlotte, Plaintiff must allege alter ego.

In order to allege alter ego, “a plaintiff . . . must allege sufficient facts to show a unity of interest and ownership, and an unjust result if the corporation is treated as the sole actor. (*Leek*, supra, p. 415 [citing *Vasey v. California Dance Co.* (1977) 70 Cal.App.3d 742, 749].) Here, Plaintiff alleges that, “there exists such a unity of interest and ownership between Defendants, that the individual and separateness of Defendants have ceased to exist.” (Id. ¶ 18.) Finally, Plaintiff alleges that, “[a]dherences to the fiction of the separate existence of Defendants would permit an abuse of the corporate privilege, and would promote injustice by protecting Defendants from liability for the wrongful acts committed by it.” (FAC ¶ 22.) These allegations, taken as true, are sufficient to establish an allegation of alter ego, as Plaintiff is only required to

allege “ultimate rather than evidentiary facts.” (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 236 [quoting Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550].)

In conclusion, the Court finds that Plaintiff has sufficiently alleged alter ego, meaning defendants Oded and Charlotte Krashinsky can be liable for the actions of the corporate defendants. For these reasons, the Court **OVERULES** Defendants’ demurrer as to the sixth, seventh, and eighth causes of action.

iv)

Ninth Cause of Action – Retaliation in Violation of FEHA

Next, Defendants raise a similar argument that individual defendants Oded and Charlotte Krashinsky are improper defendants because individuals cannot be personally liable for retaliation under FEHA. (Demurrer, p. 8:12-13.)

In support of this argument, Defendants cite to Jones v. Lodge at Torrey Pines Partnership, where the California Supreme Court held that, “we conclude that the employer is liable for retaliation under section 12940, subdivision (h), but non-employer individuals are not personally liable for their role in that retaliation. (Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1173.) Defendants assert that this language establishes that, “individuals cannot be held personally liable for retaliation under FEHA.” (Demurrer, p. 8:23.)

The Court disagrees with Defendants’ interpretation of Jones. Notably, the court in Jones specified that “non-employer” individuals are not personally liable for retaliation – not that no individual can ever be held liable for retaliation. Here, Plaintiff has alleged that individual defendants Oded and Charlotte Krashinsky are employers, not supervisors. (FAC ¶ 119.) Furthermore, as explained above, Plaintiff has sufficiently alleged alter ego. Thus, as alleged, there is a legal basis for holding these two individuals personally liable for retaliation under FEHA.

For these reasons, the Court **OVERRULES** the demurrer as to the ninth cause of action.

v)

Tenth Cause of Action – Wrongful Termination in Violation of Public

Policy

Similarly, Defendants argue that Plaintiff's claim of wrongful termination in violation of public policy, also known as a Tameny claim, fails as to Oded and Charlotte Krashinsky, because supervisors cannot be held personally liable for this cause of action. (Demurrer, p. 9:4-5.)

In support of this argument, Defendants cite to the Reno case, which explained that, "[i]t would be absurd to forbid a plaintiff to sue a supervisor under the FEHA, then allow essentially the same action under a different rubric. Because plaintiff may not sue Baird as an individual supervisor under the FEHA, she may not sue her individually for wrongful discharge in violation of public policy." (Reno, *supra*, 664.)

Defendants' argument runs into the same problems illustrated above. First, Defendants Oded and Charlotte Krashinsky are alleged to be employers, not supervisors. (FAC ¶ 119.) Second, the Court has already found that Plaintiff has sufficiently alleged alter ego, meaning they can be found liable for the actions of Plaintiff's corporate employer.

For these reasons, the Court OVERRULES the demurrer as to the tenth cause of action.

vi)

Eleventh Cause of Action – Failure to Prevent or Remedy Retaliation or Discrimination

Finally, Defendants argue that "[i]f Defendants . . . cannot be legally liable in their individual capacity for discrimination or retaliation in violation of the FEHA, then they cannot be liable personally to remedy and/or prevent discrimination or retaliation either." (Demurrer, p. 9:23-25.) This argument fails as the Court has already concluded that Defendants can be held individually liable for the alleged discrimination and retaliation under FEHA, via the alter ego allegations.

Thus, the Court OVERRULES the demurrer as to the eleventh cause of action.

vii)

Summary

In summary, the Court OVERRULES this demurrer in its entirety.

Conclusion

The

Court OVERRULES Defendants' demurrer as to the fourth, fifth, sixth, seventh, eighth, ninth, tenth, and eleventh causes of action.

IT

IS SO ORDERED, Defendants TO GIVE NOTICE.